

MUTUAL NON-DISCLOSURE AGREEMENT
Vertex Analytics Ltd. and Harrow Systems Inc.

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into as of 14 March 2025 (the "Effective Date") by and between Vertex Analytics Ltd., a company incorporated in England and Wales, and Harrow Systems Inc., a Delaware corporation (each a "Party" and together the "Parties").

1. Definitions

"Confidential Information" means any and all non-public information disclosed by either Party to the other, whether disclosed in writing, orally, electronically, or by inspection of tangible objects, including without limitation business plans, customer lists, financial data, source code, and technical specifications.

"Disclosing Party" means the Party disclosing Confidential Information, and "Receiving Party" means the Party receiving it.

2. Obligations of the Receiving Party

The Receiving Party shall hold all Confidential Information in strict confidence and shall not disclose it to any third party without the prior written consent of the Disclosing Party. The Receiving Party shall use the same degree of care it uses to protect its own confidential information, and in no case less than a reasonable degree of care.

3. Exclusions

Confidential Information shall not include information that: (a) is or becomes publicly available through no breach of this Agreement by the Receiving Party; (b) was rightfully in the Receiving Party's possession prior to disclosure; (c) is independently developed by the Receiving Party without reference to the Confidential Information; or (d) is rightfully obtained from a third party without restriction on disclosure.

4. Compelled Disclosure

If the Receiving Party is required by law, regulation, or court order to disclose any Confidential Information, it shall provide prompt written notice to the Disclosing Party so that the Disclosing Party may seek a protective order.

5. Term and Survival

This Agreement shall commence on the Effective Date and shall continue for a period of three (3) years, unless earlier terminated by either Party upon thirty (30) days' written notice. The confidentiality obligations set out in Section 2 shall survive any expiration or termination of this Agreement for a further period of five (5) years.

6. No Transfer of Rights

Nothing in this Agreement shall be construed as granting any licence or right, by implication or otherwise, in or to any patent, copyright, trademark, or other intellectual property of the Disclosing Party. Each Party retains all right, title, and interest in its own Confidential Information.

7. No Warranty

All Confidential Information is provided "AS IS". Neither Party makes any warranty, express or implied, as to the accuracy or completeness of any Confidential Information disclosed under this Agreement.

8. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of laws principles. The Parties submit to the exclusive jurisdiction of the state and federal courts located in New York County, New York.

9. General Provisions

In no event shall either Party's aggregate obligation arising under or in connection with this Agreement exceed the total fees paid or payable by the Parties in the twelve (12) months preceding the event giving rise to such obligation.

Neither Party shall be responsible to the other for any indirect, incidental, or consequential losses howsoever arising, whether in contract, tort, or otherwise.

This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior understandings, whether written or oral. No amendment shall be effective unless made in writing and signed by both Parties.

If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.